

Amendment No. 3 to HB0754

Jones J
Signature of Sponsor

AMEND Senate Bill No. 676*

House Bill No. 754

by deleting from the heading to § 68-1-2503 in SECTION 1 the language "**Right to public transparency**" and substituting "**Patient information protections**".

AND FURTHER AMEND by deleting § 68-1-2503(a) in SECTION 1 and substituting:

(a) A gender clinic operating in this state shall not report to the department, the department shall not request from a gender clinic operating in this state, and the department shall not publish, however obtained, any information regarding a patient seeking a gender transition procedure, including, but not limited to:

- (1) Treatment history;
- (2) Mental health diagnosis;
- (3) Prescription records;
- (4) Surgery information; and
- (5) The patient's state and county of residence.

AND FURTHER AMEND by deleting subsections (b)-(e) of § 68-1-2503 in SECTION 1 and redesignating any remaining subsections accordingly.

AND FURTHER AMEND by deleting subsection (c) in SECTION 2 and substituting:

(c) An entity providing insurance coverage for detransition procedures in this state shall not report to the department, the department shall not request from such entity, and the department shall not publish, however obtained, any information regarding insurance claims for gender transition procedures, including, but not limited to, claim information related to:

- (1) Treatment history;

- (2) Mental health diagnosis;
- (3) Prescription medications;
- (4) Surgical procedures; and
- (5) The covered individual's state and county of residence.

AND FURTHER AMEND by deleting subsections (d)-(g) in SECTION 2 and redesignating any remaining subsections accordingly.